

24TRCV00263 24TRCV00263

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 24TRCV00263 Hearing Date: July 29, 2026 Dept: B

Moving Party: Plaintiff Edith R.

Parra

Responding Party: Defendant American Honda

Motor Company

Motion to Tax Costs

The Court considered the moving, opposition, and reply papers.

RULING

See Order below.

BACKGROUND

On January

25, 2024, Edith R. Parra filed a complaint against American Honda Motor Company, Inc. for violations of the Song-Beverly Act as to a 2022 Honda Passport.

On

February 24, 2026, the Court granted defendant's motion for summary adjudication as to the third cause of action and denied it as to the second and fourth causes of action.

A jury

trial was held on April 29, 2026 through May 4.

The special verdict indicates that the 2022 Honda Passport did not have a defect covered by the warranty that substantially impaired the vehicle's use, value, or safety to a reasonable buyer in plaintiff's situation.

On May

12, 2026, judgment was entered in favor of defendant. Defendant was deemed the prevailing party and entitled to costs.

On

June 1, 2026, defendant filed a memorandum of costs in the total amount of \$35,201.18.

LEGAL

AUTHORITY

"Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3)." Cal. Rules of Court, Rule 3.1700(b)(1).

"Except

as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. This means that the prevailing party is entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party." Nelson v. Anderson (1999) 72 Cal. App. 4th 111, 128-29 (citations and internal quotations omitted); CCP §1032(b) ("Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding").

CCP

§1033.5(c) states, in relevant part:

"Any award for costs shall be subject to the following:

(1) Costs are allowable if incurred, whether or not paid.

(2)

Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

(3)

Allowable costs shall be reasonable in amount.

(4)

Items not mentioned in this section . . . may be allowed . . . in the Court's discretion."

"If

the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs."

Ladas v. California State Automotive Assoc. (1993) 19 Cal. App.

4th 761, 774 (citation omitted). Id. "The court's first determination, therefore,

is whether the statute expressly allows the particular item, and whether it

appears proper on its face. If so, the

burden is on the objecting party to show them to be unnecessary or

unreasonable." Nelson v. Anderson

(1999) 72 Cal. App. 4th 111, 131 (citations omitted). "[I]t is not enough for the losing party to

attack submitted costs by arguing that he thinks the costs were not necessary

or reasonable. Rather the losing party

has the burden to present evidence and prove that the claimed costs are not

recoverable." Seever v. Copley Press,

Inc. (2006) 141 Cal. App. 4th 1550, 1557.

DISCUSSION

Plaintiff requests that the Court tax

and/or strike Items 1, 4, 8, 13, and 15.

Item 1: filing and motion fees - \$2857.31

Plaintiff disputes the following

costs specifically as being unsupported by documentation and/or not reasonably

necessary: e. \$177.60 for ex parte

application to advance MSA, k. \$84.70 for ex parte application, p. \$91.70 for

ex parte application to disqualify, l. \$23.70 notice of errata, h. jury instructions, q. final jury instructions, i. 59.60 for substitution of attorney.

In opposition, defendant argues that it was not required to attach supporting documentation to the memorandum of costs as a verified memorandum of costs generally satisfies its burden. Notwithstanding, defendant asserts it will provide such supporting documentation. Defendant further argues that each cost was reasonably necessary.

The Court finds that the costs are allowable and that plaintiff has not met her burden that such costs are neither reasonable nor necessary.

Item 4: deposition costs - \$9484.25 (as to plaintiff, plaintiff's husband, and defendant's PMK)

Costs of taking, transcribing, and videotaping depositions are recoverable. See CCP §1033.5(a)(3).

Plaintiff contends that defendant fails to provide any invoices, court reporter receipts, videographer bills, or any other documentation as evidence to these claimed costs.

In opposition, defendant notes that it was not required to attach such documentation but that it will.

The Court finds that the costs are allowable and that plaintiff has not met her burden that such costs are neither reasonable nor necessary.

Item 8: witness fees - \$90.00 for witness Armando Ramirez who appeared for two days

Plaintiff contends that the pursuant to Gov. Code §68093, ordinary witness fees are \$35.00 plus .20 a mile and that defendant provides no record of Ramirez "being legally required to attend trial in this matter."

In opposition, defendant argues that

the costs were reasonably incurred as Ramirez's testimony at trial "went to the crux of the issue—whether a warrantable defect existed" and that the costs are properly calculated as to witness fees plus mileage.

The Court finds that \$70 is the amount allowable as witness fees.

Defendant did not seek mileage in its memorandum of costs. The excess amount of \$20 is not recoverable.

Item 13: models, enlargements, and photocopies of exhibits - \$298 (\$99 for deposition summary of Miguel Parra, \$199 for deposition summary of Edith Parra)

Plaintiff asserts that defendant did not provide any documentation to evidence "the actual incurrence of these costs" or establish that these costs were reasonable and necessary or even recoverable. Plaintiff argues that deposition summaries are not recoverable under this section.

The opposition does not address.

The Court finds that these costs are not recoverable.

Item 15: "other costs" - \$22,084.52

Plaintiff argues that the claimed costs under "other" are not among the categories expressly authorized under CCP §1033.5(a) and that defendant has not shown that they were reasonably necessary to the litigation and that the amounts are reasonable. Plaintiff contends that \$164 for litigation support – trial binders and \$225 for litigation support – MIL binders are disallowed under CCP §1033.5(b)(3) and the other "litigation support" costs are not recoverable as they were done for the convenience of defense counsel. Plaintiffs assert that \$111.50 for "subpoena, service, custodian witness fee – Culver City Honda" and \$166.92 for "subpoena, service, custodian witness fee – Western Motors II Service Dept." do not fall under any of the permitted categories.

As for \$16,251.99 for "court reporter fees and transcripts (trial), plaintiff argues that defendant is not allowed to include costs for transcripts of court proceedings not ordered by the Court.

In opposition, defendant

acknowledges that “court reporter fees and transcripts (trial)” are not recoverable. As for costs associated with the court-mandated trial binders, defendant asserts that plaintiff’s “failure to adequately prosecute its case left AHM with no choice but to construct and pay for all the trial binders to be made.” Defendant also acknowledges that costs related to subpoenas, custodian witness fees, and service thereof are within the Court’s discretion.

The Court finds that the costs of photocopying, except for exhibits, are not allowable as costs pursuant to CCP §1033.5(b)(3). Thus, photocopying charges totaling \$503 are not allowed. The Court finds that other costs associated with preparing, delivering, and retrieving required binders (trial, MIL, deposition testimony, and exhibits – including copying), were reasonable and necessary. It is unclear what the purpose of uploading records was, but it appears to be for convenience of defendant, so the Court will not allow \$127.40. The Court notes that court reporter fees as established by statute are allowable (CCP § 1033.5(a)(11)), but transcripts of court proceedings not ordered by the court are not (CCP § 1033.5(b)(5)). Defendant has withdrawn its request for both. Finally, the Court finds that the fees associated with the custodian witnesses are reasonable and necessary.

ORDER

The motion is GRANTED IN PART. The Court STRIKES \$17,200.39 from defendant’s memorandum of costs.

Plaintiff is ordered to give notice of ruling.